

26LBCV00049 26LBCV00049

County: los-angeles

Division: Civil Law and Motion

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Case Number: 26LBCV00049 Hearing Date: July 14, 2026 Dept: S27

1.

Background Facts

Plaintiff filed his operative First Amended Complaint on 3/18/26. The FAC includes causes of action for IIED, trespass, negligence, and tenant harassment, and seeks monetary damages and injunctive relief. The substantive allegations of the FAC are found at ¶¶7-10, wherein Plaintiff alleges:

7. Defendant Andrew Bish

personally engaged in a pattern of harassment, intimidation, and unauthorized conduct directed at Plaintiff.

8. Defendant repeatedly appeared at Plaintiff's residence without notice or lawful authority, including entering Plaintiff's driveway and attempting to access the premises.

9. Defendant engaged in threatening and confrontational conduct, which at times required police involvement.

10. Defendant's conduct was intentional and directed at Plaintiff personally.

2. Demurrer

to FAC

a.

Parties' Positions

Defendant demurs to the FAC, contending (a) the original complaint admitted Defendant is being sued in his capacity as manager of the subject building, which is owned by Donna Do, (b) to the extent the FAC alleges otherwise, it is a sham pleading, and (c) the FAC is barred by the doctrine of res judicata because Plaintiff previously sued Do for the same claims that form the basis of this action.

Plaintiff opposes the demurrer, contending the FAC is not a sham complaint and res judicata does not apply because Defendant is being sued in this action in his individual capacity.

b. Legal

Standard on Demurrer

A demurrer is a pleading used to test the legal sufficiency of other pleadings. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading. It is not the function of the demurrer to challenge the truthfulness of the complaint; and for purpose of the ruling on the demurrer, all facts pleaded in the complaint are assumed to be true, however improbable they may be.

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack; or from matters outside the pleading that are judicially noticeable. *Blank v. Kirwan* 39 Cal.3d 311 (1985). No other extrinsic evidence can be considered (i.e., no "speaking demurrers"). A demurrer is brought under CCP § 430.10 [grounds], § 430.30 [as to any matter on its face or from which judicial notice may be taken], and § 430.50(a) [can be taken to the entire complaint or any cause of action within]. Specifically, a demurrer may be brought per CCP § 430.10(e) if insufficient facts are stated to support the cause of action asserted. Per CCP § 430.10(a) a demurrer may be brought where the court has no jurisdiction of the subject of the cause of action alleged in the pleading. Furthermore, demurrer for uncertainty will be sustained only where the complaint is so bad that the defendant cannot reasonably respond. CCP § 430.10(f).

However, in construing the allegations, the court is to give effect to specific factual allegations that may modify or limit inconsistent general or conclusory allegations. Financial

Corporation of America v. Wilburn, 189 Cal.App.3d 764, 769 (1987). And, if the facts pled in the complaint are inconsistent with facts which are incorporated by reference from exhibits attached to the complaint, the facts in the incorporated exhibits control. Further, irrespective of the name or label given to a cause of action by the plaintiff, a general demurrer must be overruled if the facts as pled in the body of the complaint state some valid claim for relief. Special demurrers are not allowed in limited jurisdiction courts. (CCP § 92(c).)

Leave to amend must be allowed

where there is a reasonable possibility of successful amendment. Goodman v. Kennedy, 18 Cal.3d 335, 348 (1976). The burden is on the complainant to show the Court that a pleading can be amended successfully. (Id.)

Finally, CCP section 430.41

requires that “[b]efore filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (CCP §430.41(a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (CCP §430.41(a)(2).) Thereafter, the demurring party shall file and serve a declaration detailing their meet and confer efforts. (CCP §430.41(a)(3).)

c. Meet

and Confer

Defense Counsel sent a detailed

meet and confer letter on 4/12/16 and asked Plaintiff to advise by 4/16/16 if he would agree to dismiss his FAC.

Defendant then filed this demurrer on 4/21/16. Defendant did not initiate or invite Plaintiff to initiate meet and confer correspondence “in person or over the telephone,” as the Code requires. The

Court will rule on the demurrer on its merits, but orders Defendant to fully comply with the Code in the future.

d. 24LBCV01075

Defendant seeks judicial notice of

various documents filed in 24LBCV01075, including Plaintiff’s complaint,

amended complaint, the relevant §998 offer, and the final judgment. The RJN is unopposed and granted. Plaintiff also seeks judicial notice of the final judgment. His RJN is also granted.

In 24LBCV01075, Plaintiff sued Donna Do and Does 1-10 for breach of contract, common counts, and retaliation for exercising Civil Code §1941.1. The complaint sought damages for breach of warranty of habitability and alleged, “Donna Do assigned an unlicensed property manager named Andrew Bish to manage my unit at 3720 Lime Ave....Andrew Bish has been the property manager for my unit since my move in and continues in his role presently. This is in violation of CA-Realestate Code 10131-b. Then on or thereabouts 8-1-2022 I submitted a repair request to Andrew Bish for the back sliding glass door lock to be fixed or replaced and the repair request went unresolved for more than a year. Neglect of repair request happened again on or thereabouts 8-25-23 when I notified the property manager Andrew Bish that I had a large roof leak in my home office area. The roof leak remained unrepaired until February 2024.” Plaintiff also included a signed declaration with his original complaint in 24LBCV01075, and the signed declaration contained allegations about Bish becoming hostile toward him and threatening him.

Judgment was entered per the parties’ §998 offer and acceptance. The judgment indicates it is in favor of Plaintiff and against Defendant, Donna Do in the amount of \$45,000 plus costs. The §998 offer contemplates a general release of all claims alleged in the complaint against Donna Do and entry of dismissal of the complaint with prejudice in exchange for payment of \$45,000.

e. Sham
Pleading Doctrine

Defendant argues the FAC is a sham pleading because the original complaint admitted Defendant was acting as Plaintiff’s manager in connection with his original complaint, but alleged he was acting in his individual capacity in connection with the amended complaint.

When a complaint contains

allegations that are fatal to a cause of action, a plaintiff facing demurrer cannot avoid those defects simply by filing an amended complaint that omits the problematic facts or pleads facts inconsistent with those alleged earlier. *Banis Restaurant Design, Inc. v. Serrano* (2005) 134 Cal.App.4th 1035.

Plaintiff's original complaint

alleged, "Mr. Bish was not licensed to manage property yet repeatedly acted in that capacity and on behalf of landlord Donna Do." Plaintiff's FAC alleges, "Defendant Andrew Bish personally engaged in a pattern of harassment, intimidation, and unauthorized conduct." Plaintiff's FAC, filed in response to Defendant's meet and confer correspondence re: res judicata, drops all reference to Donna Do.

The Court finds the sham pleading doctrine applies and the Court will read the allegations of the original complaint into the amended complaint; for purposes of this demurrer, the Court will consider Plaintiff's allegation that Defendant was acting as an unlicensed property manager for Donna Do in connection with the acts that form the basis of the complaint.

f. Res

Judicata

The final issue is whether Defendant, to the extent he was an unlicensed property manager for Donna Do, is entitled to assert a res judicata defense to a complaint that clearly arises out of the same set of facts alleged in the complaint against Do. Defendant correctly notes that res judicata applies if the parties to the two actions are the same OR if the parties are in privity with the parties to the prior action. See *DKN Holdings LLC v. Farber* (2015) 61 Cal.4th 809, 820. Defendant DKN makes clear that he, as Do's property manager, is in privity with Do such that the doctrine applies.

The issue in DKN was whether joint tortfeasors are always in privity with one another. The DKN Court held that this is not the case. The DKN Court did not meaningfully address whether and when parties are in privity with one another.

Plaintiff, in opposition to the

motion, contends Defendant could not have been in privity with Do because he was an unlicensed property manager, which is unlawful. Plaintiff cites no authority for this position.

Neither party cites authority concerning whether an unlicensed property manager is in privity with the property owner. The Court is continuing the hearing on the demurrer to require the parties to meaningfully meet and confer on this issue, in person or over the telephone, and to provide further briefing addressing the specific issue posed.

The hearing on the demurrer is continued for six weeks, to Tuesday, 8/25/26 at 8:30 a.m. in Department S27. The parties must meet and confer within the next three weeks. If they are unable to resolve their issues, briefs concerning whether or not an unlicensed property manager is in privity with a property owner are due at least two weeks prior to the hearing. If the parties resolve their issues, Defendant must use the online reservation management system to take the hearing on the demurrer off calendar.

3. Case Management Conference

The CMC is also continued to 8/25/26 at 8:30 a.m.

Defendant is ordered to give notice.